



CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

MEMO

TO: Honorable Mayor Marian J. Orr, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Wesley D. Bay, P.E., Deputy City Engineer

DATE: May 8, 2019

SUBJECT: Contract Amendment #1 to Surface Transportation Urban Program Subrecipient Agreement Between the Wyoming Department of Transportation (WYDOT) and the City of Cheyenne (City Contract #6481).
Prairie Ave. & Frontier Mall Dr. Intersection Improvements Project

Please find the attached proposed contract amendment for the above referenced Subrecipient Agreement. This amendment is for right-of-way acquisition services performed by WYDOT.

The cost increases include services for the review of legal exhibits outlining right-of-way delineation, property appraisal, land purchase negotiation and acquisition, and WYDOT's Indirect Cost Allocation Plan (ICAP) increases. This additional work is required due to the reconfiguration of the original intersection design. The reconfiguration extended the project footprint outside of City right-of-way. The total amendment will increase the City's cost obligation to \$241,118 from \$229,269 (+\$11,849). We respectfully request your approval of this contract amendment.

Date: 5-7-19

**AMENDMENT ONE TO THE
SUBRECIPIENT AGREEMENT
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE**

Federal Project STPU-CH B171028
Prairie Avenue-Frontier Mall Drive
Laramie County

1. **Parties.** This Amendment is made and entered into by and between the Wyoming Department of Transportation (WYDOT) whose address is 5300 Bishop Blvd., Cheyenne, Wyoming 82009, and the City of Cheyenne (City) whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
2. **Purpose of Amendment.** This Amendment shall constitute the first amendment to the Agreement between WYDOT and the City. The purpose of this Amendment is to: a) change the total Agreement dollar amount from two million, four hundred ten thousand, eight hundred twenty-three dollars (\$2,410,823.00) to two million, five hundred thirty-five thousand, four hundred twenty dollars (\$2,535,420.00); b) replace Exhibit "B" with Exhibit "B-1".

The original Agreement, dated April 20, 2016, provided for intersection reconstruction to build a roundabout at Prairie Avenue (ML4059B-minor arterial) and Frontier Mall Drive (ML4078B-major collector) in the City of Cheyenne for a total Agreement amount of two million four hundred ten thousand eight hundred twenty-three dollars (\$2,410,823.00).

3. **Term of Amendment.** This Amendment shall commence upon the date the last required signature is affixed hereto (Effective Date), and shall remain in full force and effect through the term of the Agreement, as amended, unless terminated at an earlier date pursuant to the provisions of the Agreement, or pursuant to federal or state statute, rule, or regulation.
4. **Amendments.**
 - A. As of the Effective Date of this Amendment, Exhibit "B", Cost Summary, which was attached to the original Agreement, is superseded and replaced by Exhibit "B-1", Amended Cost Summary, which is attached to this Amendment and incorporated into the original Agreement by this reference. All references to "Exhibit 'B'" in the original Agreement, and in any amendments thereto, are amended to read: "Exhibit 'B-1'".

5. **Amended Responsibilities of the City.**

The responsibilities of the City have not changed.

6. **Amended Responsibilities of WYDOT.**

The responsibilities of WYDOT have not changed.

7. **Special Provisions.**

A. **Same Terms and Conditions.** With the exception of items explicitly delineated in this Amendment, all terms and conditions of the original Agreement, between WYDOT and the City, including but not limited to sovereign immunity, shall remain unchanged and in full force and effect.

B. **Counterparts.** This Amendment may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Amendment. Delivery by the City of an originally signed counterpart of this Amendment by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

8. **General Provisions.**

A. **Entirety of Agreement.** The original Agreement, consisting of fourteen (14) pages; Exhibit "A", Location Map, consisting of one (1) page; Exhibit "B", Cost Summary, consisting of one (1) page; this Amendment One, consisting of three (3) pages; and Exhibit "B-1", Amended Cost Summary, consisting of one (1) page, represent the entire and integrated agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK

9. **Signatures.** The parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Amendment.

This Amendment is not binding on either party until approved by A&I Procurement and the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-1016(b)(iv).

ATTEST:

CITY OF CHEYENNE, WYOMING:

Kris Jones, City Clerk

By: _____
Marian Orr, Mayor

Date

Date

(SEAL)

ATTEST:

WYOMING DEPARTMENT OF TRANSPORTATION:

Sandra J. Scott, Secretary
Transportation Commission of Wyoming

By: _____
Shelby G. Carlson, P.E., Chief Engineer

(SEAL)

Date

Approved as to form:

By:  191092
Alysia Goldman 3/11/19
Assistant Attorney General
State of Wyoming

Date amendment prepared 3-7-19

EXHIBIT "B-1"

Federal Project STPU-CH B171028
Prairie Avenue-Frontier Mall Drive
Laramie County

Amended Cost Summary
March 4, 2019

Costs were prepared by WYDOT.

<u>Item</u>		<u>Cost</u>	
Estimated Construction Costs	=	\$2,000,000.00	
10% Preliminary Engineering (Managed by City)	=	200,000.00	
10% Construction Engineering (Managed by City)	=	200,000.00	
Right-of-Way Costs	=	112,000.00	
WYDOT Monitoring Costs (OTH1)	=	<u>10,000.00</u>	
Total Direct Costs	=	\$2,522,000.00	[1]
Indirect Cost Allocation Plan (ICAP) (122,000.00) (0.1100)	=	<u>13,420.00</u>	[2]
Total Project Costs = [1] + [2] = [3]	=	<u>\$2,535,420.00</u>	[3]
<u>Funding Breakdown:</u>			
WYDOT's Federal Match: (2,535,420.00) (0.9049)	=	\$2,294,302.00	[4]
City's Match Portion: (2,535,420.00) (0.0951)	=	<u>241,118.00</u>	[5]
Total Project Costs = [4] + [5]	=	<u>\$2,535,420.00</u>	

NOTE: All costs shown are rounded to the nearest even dollar.

The above figures are for estimating purposes only and are subject to revision throughout the life of this project.

Date: 5.7.19

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Alysia Goldman #191092
Assistant Attorney General
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